

this is simply a calendar error that should be excused, but that is not the case. This case was over 10 months old at the time it was dismissed and there was no service of the complaint. The simple mis calendaring of the hearing date of the OSC did not prevent the Plaintiff from timely serving the complaint, that was the conduct of Counsel. There is no excuse in this matter for the failure to serve the complaint and as such, the motion is denied.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2302700	ASL BUILDERS, INC. vs HOOVER	MOTION TO COMPEL TO COMPEL FURTHER RESPONSES TO FIRST SET OF FORM INTERROGATORIES

Tentative Ruling:

Factual/Procedural Context

First Amended Complaint (FAC) & Allegations. Plaintiff ASL Builders, Inc. (or “ASL”) alleges that Defendants, Randy and Chrystal Hoover, own real property in Riverside (the “Property”). Plaintiff alleges that in September 2021, it entered into a written construction contract with Defendants where Plaintiff would provide labor, work, equipment, materials, and services, on a private work of improvement on the Property for \$1,094,768.47. Plaintiff alleges it fully performed except for covenants and obligations that were excused or waived. Defendants have only paid \$994,268.97 leaving a balance due of \$100,499.50, which Plaintiff has demanded but Defendants refuse to pay. The operative FAC, filed on May 26, 2023, asserts six causes of action: (1) breach of contract; (2) work, labor and services/agreed price; (3) open book account; (4) account stated; (5) reasonable value/work, labor and services; and (6) foreclosure on mechanic’s lien.

On March 4, 2026, Cross-Complainants, the Hoovers, filed their Third Amended Cross-Complaint (TACC) alleging 15 causes of action: (1) breach of contract; (2) damages for breach of warranty and failure to preserve warranties on home system; (3) damages for negligent work and defective materials; (4) enforcement of statutory bond; (5) tortious breach of implied covenant of good faith and fair dealing; (6) negligence; (7) fraud; (8) violations of the California Consumers Legal Remedies Act, Civil Code § 1750 et seq; (9) Unfair Business Practices in Violation of Business & Professions Code § 17200 et seq; (10) Violations of California Business and Professions Code §§ 7160, 7161 for fraud and deceit; (11) Rescission of Purported Home Improvement Construction Contract and Restitution; (12) intentional misrepresentation; (13) unjust enrichment; (14) Civil Penalties under Penal Code section 496(c); and (15) declaratory relief.

There is no trial date set.

Motion. ASL and Larry Nelson Sanford II (“Cross-Defendants” or “Movants”) now move to compel further responses from the Hoovers to Cross-Defendants’ Form

Interrogatories (“FROGs”) and Request for Production of Documents (“RFPs”). Movants argue the Hoovers’ responses are incomplete, evasive, inadequate, and contain meritless and frivolous objections.

In opposition, the Hoovers contend the motions are procedurally defective and substantively meritless. The Hoovers point out the motions are untimely, filed one day late after the 45-day statutory deadline. They also argue Movants failed to make a reasonable and good-faith attempt to meet and confer. On the merits, the Hoovers maintain their objections are substantially justified as the information sought are available as public record, protected by privilege, or is overbroad and irrelevant.

In reply, Movants maintain they timely filed their motion because the deadline was April 28, 2026, the same day the motion was filed. Movants further maintain they reasonably met and conferred, especially given they offered to extend time to provide supplemental responses in exchange for an extension to file the motion to compel. (Hoggard Decl., ¶¶5-6, Exh. C.) Movants otherwise generally repeat the arguments set forth in their motion.

Hearing June 3, 2026. At the June 3, 2026 hearing, the Court found Movants’ motion to be timely as discussed *infra*. Because counsel for the Hoovers declared he would have engaged in a meaningful meet and confer if there was sufficient time, the Court continued the hearing and ordered the parties to meet and confer. The Court further ordered the parties to file a separate joint statement for both motions no later than 10 days prior to the continued hearing date of July 1, 2026. The Court ordered that the joint statement should outline the additional meet and confer efforts, identify any remaining discovery request at issue, and state the parties’ respective positions.

Joint Statement. On June 22, 2026, Movants filed a Joint Statement representing that “On July (sic) 17, 2026, [the parties] met and conferred via telephone with respect to each” FROG and RFP that is the subject of the motion. The Hoovers agreed to provide supplemental verified written responses and documents to the extent required to Movants’ FROG Nos. 305.4, 305.5, subdivision (a) & (b), 311.1. and 311.3 and to RFP Nos. 37, 38, 39, and 54 by July 15, 2025.

On August 6, 2026, counsel for the Hoovers, Mark A. Mellor (“Mellor”), filed a declaration on August 6, 2026 stating on July 1 2026, he began preparing to commence trial on July 17, 2026 in CVRI2402675 in department 10. (Mellor Supp. Decl., ¶4.) The trial concluded with closing arguments on April 5, 2026. (*Id.* at ¶8.) Mellor was also concurrently trailing trial in CVRI2304747 in department 3 in the month of July. (*Id.* at ¶5.) Due to being in trial in July, Mellor prepared supplemental responses to discovery as of the execution of the declaration. (*Id.* at ¶8.) Mellor requests the Court to excuse the Mellor Law Firm and the Hoovers from the imposition of monetary sanctions. (*Id.* at ¶11.) If sanctions are to be imposed, Mellor requests the Court to impose sanctions on Mellor only and not the Hoovers. (*Ibid.*)

Analysis

The Court's ruling on June 3, 2026 was clear that Mellor's trial schedule does not absolve him of his responsibilities. Based on the Joint Statement, the Court should **GRANT** the motion.

If the party properly asks for monetary sanctions, the court "**shall**" impose a **monetary sanction** against the losing party unless it finds the losing party "acted with substantial justification" or other circumstances make imposition of the sanction "unjust." (Code Civ Proc., § 2030.290, subd. (c), emphasis added.) Attorney Mellor's trial schedule does not absolve him of his responsibilities to timely respond to discovery requests. This is especially true when Mellor agreed to the July 15, 2026 date to provide supplemental responses.

Movants request monetary sanctions in the amount of \$1,476 based on 4.8 hours of work at \$295 per hour and a \$60 filing fee. This appears reasonable. The Court issues sanctions against attorney Mellor only.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2302700	ASL BUILDERS, INC. vs HOOVER	MOTION TO COMPEL TO COMPEL FURTHER RESPONSES TO FIRST SET OF REQUESTS FOR DOCUMENTS AND THINGS (SET ONE)

Tentative Ruling: See above.